

to present sufficient facts to justify sealing the court records. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879.)

Here, Plaintiffs' counsel declares that sealing is necessary to an overriding interest that overcomes the right to public access to the records. That overriding interest "is the parties have entered into a settlement with the amount of settlement terms agreed to be confidential, and condition of payment to be conditional on the record." (Dec.McClellan ¶ 2.c.) Plaintiffs assert this overriding interest promotes settlements by keeping them confidential but, enforceable under CCP § 664.6. (*Ibid.*) A contractual obligation not to disclose could constitute an overriding interest. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283.) However, there must still be prejudice. (*Id.*)

Plaintiffs argue that if the SAR is not sealed, they will be prejudiced by an inability to enforce the terms since the Court will not have sufficient information to enter judgment or to enforce it. (*Id.* ¶¶ 4-5.) ESP does not oppose the Court keeping the settlement amounts confidential. However, the Court must be able to enforce the material terms, which it cannot do without including the amounts in a judgment.

Plaintiffs also conclude that the proposed sealing is narrowly tailored and there are no less restrictive means to protect the overriding interest. (*Id.* ¶ 6.) These assertions and arguments are conclusory. And, they do not support sealing the *entire* SAR and related documents.

Moreover, ESP adds that what Plaintiffs submitted does not allow for the Court to enter into any particular monetary judgment because it acknowledges some payment was made but, does not credit that amount and set forth the remaining balance due. "While the court may interpret the terms of the parties' settlement agreement, 'nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.'" (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1374.) Thus, a court can only enforce terms that that were actually agreed to by the parties. (*Leeman, supra.* at p. 1374; *Greyhound Lines Inc. v. Sup. Ct.* (1979) 98 Cal.App.3d 604, 608 [court properly denied motion to enforce settlement agreement because there was substantial evidence to support the trial court's determination that Olsen had not agreed to the terms of the proposed settlement].)

Based on the foregoing, Plaintiffs have not provided a properly authenticated copy of the SAR, and have not established all of the requirements to seal the documents.

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CASE #	CASE NAME	HEARING NAME
CVPS2500151	MEZA VS LEE	MOTION FOR EXTENSION OF TIME AND MOTION FOR LEAVE TO FILE SUPPLEMENTAL COMPLAINT

Tentative Ruling: No tentative. Hearing will be conducted on Wednesday September 2, 2026 at 8:30 a.m. in Department PS2.